

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 12
APRIL 15, 2026
8:30 a.m.

2. BRYCE SHIPLEY V. ELISE SHIPLEY

26FL0160

This matter is before the court for hearing of the Request for Order (RFO) filed by the Petitioner on March 03, 2026, to set child custody and visitation. On March 03, 2026, the court issued an order shortening time. The court ordered Petitioner to serve the RFO upon Respondent no later than March 09, 2026; and ordered the Respondent to file and serve a Responsive Declaration no later than March 16, 2026. The court also referred the parties to a CCRC session set for March 19, 2026.

There is no proof of service of the RFO or the court's Notice of Tentative Ruling in the court's file. Nonetheless, on March 16, 2026, Respondent filed a Responsive Declaration and Supplemental Declaration. Proof of service filed March 17, 2026, shows that the Responsive Declaration was electronically served upon the Petitioner on March 16, 2026. Proof of service attached to the Supplemental Declaration shows it was electronically served upon the Petitioner on March 17, 2026, which is untimely under the court's March 03, 2026, order shortening time. Therefore, the court does not consider the untimely Supplemental Declaration.

On March 18, 2026, Respondent filed declarations from the following witnesses: (1) Lloyd Steinbrook; (2) Mitchell Shipley; (3) Matthew Howells; and (4) Darlene Shipley. Proof of service filed March 18, 2026, shows that each of these declarations was electronically served upon the Petitioner that same day. The court does not consider any of the aforementioned declarations due to their untimeliness.

The court is in receipt of the CCRC report dated March 23, 2026, a copy of which was mailed to both parties, and electronically served upon both of their attorneys, on March 25, 2026, according to the Clerk's Certificate of Mailing, also filed March 25, 2026.

On April 02, 2026, Respondent filed another declaration in opposition to Petitioner's RFO (as opposed to a declaration addressing the contents of the CCRC report). Proof of service attached to the declaration shows it was electronically served upon the Respondent that same day. The court does not consider this declaration due to its untimeliness.

On April 06, 2026, Respondent filed objections to the March 23, 2026, CCRC report. A copy of Respondent's objections were electronically served upon Petitioner that same day according to the attached proof of service.

On April 07, 2026, the court denied a request made by the Respondent to continue the instant hearing.

Having read and considered the CCRC report, the court finds that the agreements and recommendations contained therein are in the best interests of the parties' children and so adopts them as the orders of the court, with two exceptions outlined below.

1. Although the CCRC report recommends joint physical custody of the children utilizing a 2/2 schedule, the court does not find it to be in the best interest of the children for the parties to share equal physical custody at this time. While the

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court commends the Respondent for his commitment to sobriety, as well as his desire to spend more time with the children (in light of his previous statements to the effect of him not wanting to be a parent), the court wants to be confident the Respondent is sincere about these changes by seeing a longer period of demonstrated improvement. As noted in the CCRC report, the Respondent has abstained from alcohol since January 05, 2026. Respondent reported that previously, however, he drank three drinks a night on the weeknights and around 10 drinks a night on the weekends. The court modifies the recommendation in the CCRC report regarding the parenting plan as follows: Respondent shall have custody of the children every weekend except for the third and fifth weekends of each month. Weekend custody shall begin at the end of the school day on Fridays (or 3:00 p.m. on Fridays if school is not in session) and end on Sundays at 5:00 p.m. The parent having weekend custody time shall pick the children up from school on Friday (or the other parent's residence if school is not in session) and return the child to the other parent's residence on Sunday at 5:00 p.m. Additionally, the Respondent shall have custody of the children every Wednesday from 3:00 p.m. to 6:00 p.m. On these days, the Respondent shall pick the children up from school (or the Petitioner's residence if school is not in session) and return the children to the Petitioner's residence at 6:00 p.m.

2. The court modifies the right of first option of childcare to apply when either parent requires childcare for four hours or more (the CCRC report recommends that the right of first option apply when either parent requires childcare for two hours or more).

TENTATIVE RULING #2: APPEARANCES ARE REQUIRED AT 8:30 A.M., WEDNESDAY, APRIL 15, 2026, IN DEPARTMENT 12. THE COURT'S TENTATIVE RULING IS TO GRANT THE RFO IN PART AND DENY THE RFO IN PART. REFER TO FULL TEXT. BECAUSE THERE IS NO PROOF OF SERVICE OF THE COURT'S NOTICE OF TENTATIVE RULING IN THE COURT'S FILE, THE COURT WILL NOT LIMIT THE PARTIES' ABILITY TO PRESENT ORAL ARGUMENT UNDER LOCAL COURT RULE 8.05.07 (GENERALLY REQUIRING A TIMELY ORAL ARGUMENT REQUEST, AS WELL AS NOTICE UPON THE OTHER PARTY, ON THE DAY THE TENTATIVE RULING IS ISSUED).